

113	1513 Civic Center LLC vs. De Delgado, 25-01496605	Caboraca Investments, Inc.'s Motion to Quash the deposition subpoena that Plaintiff served on JP MORGAN CHASE BANK, N.A., with a production date of October 1, 2025, see ROA 27, came before the Court for a hearing on 04/09/2026. (ROA 82.) In the Court's Minute Order following the hearing, the Court stated the following: "Second, the motions filed by 920 North Grand Ave, LLC and Caboraca Investments, Inc. to quash the deposition subpoena that Plaintiff served on JP MORGAN CHASE BANK, N.A., with a production date of October 1, 2025 were not served on the witness (Chase) as required pursuant to Code of Civil Procedure section 1985(g). (ROAs 23 and 27.) As stated above, the motion filed by 920 North Grand Ave, LLC is VACATED. Caboraca Investments, Inc.'s motion, however, is CONTINUED TO May 21, 2026 at 1:30 p.m. Moving party shall filed proof of service on Chase no later than 16 court days before the continued hearing." (ROA 82 [bold emphasis added].) As set forth above, the Court ordered that Caboraca Investments, Inc. was to file a proof of service establishing service of its motion to quash the deposition subpoena at issue on Chase no later than 16 court days before the continued hearing. Caboraca Investments, Inc. failed to file this proof of service and therefore has not complied with the statutory notice requirements pursuant to Code of Civil Procedure section 1985(g). As such, the motion to quash is DENIED WITHOUT PREJUDICE. <i>Moving party to give notice.</i>